



THE MARRIAGES (PROHIBITION OF WASTEFUL EXPENSES) ACT, 1997



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THE PAKISTAN CODE

THE MARRIAGES (PROHIBITION OF WASTEFUL EXPENSES) ACT, 1997

ACT NO. XXI OF 1997

An Act to provide for the prohibition of wasteful expenses on marriages and ceremonies related thereto

WHEREAS, it is expedient to provide for the prohibition of wasteful expenses on marriages and ceremonies related thereto;

It is hereby enacted as follows:—

1. Short title and commencement.—(1) This Act may be called the Marriages (Prohibition of Wasteful Expenses) Act, 1997.

(2) It extends to the whole of Pakistan.

(3) It shall come in to force on the sixteenth day of March, 1997 and shall remain in force a period of two years from its commencement.

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context—

- (a) “Committee” means an Ehtesab Committee constituted under section 6; and
- (b) “marriage” shall include all ceremonies, preceding and succeeding the formal wedding whether religious or civil rituals such as *nikah*, *rukhsati*, *walima*, *mehndi*, *rasme-hina*, and other functions and celebrations connected with marriage and related festivities.

3. Prohibition of ostentatious celebrations.—(1) subject to sub-section (2), no person celebrating his marriage or the marriage of any other person shall,—

- (a) decorate or cause to be decorated any house or building including any space appertaining thereto, street, road or other place whether owned by him or otherwise with lights or illumination; or
- (b) explode or allow anyone to explode cracker or other explosive device including firing by firearm; or
- (c) display or allow anyone to display fire-works.

(2) Nothing contained in sub-section (1) shall prohibit the use of such lights as are ordinarily necessary to lit the house or any other place being the site of marriage.

4. Restriction on wasteful expenses.—(1) No person celebrating his or the marriage of any other person shall serve or allow any one to serve meals or other edibles to the persons participating in the marriage in a club, hotel, restaurant, wedding hall, community center or any other public place except hot and cold soft drinks.

(2) Nothing contained in sub-section (1) shall apply to the eating of meals within the house by the members of the family celebrating the marriage or the house guests.

5. Application of the Act to hotels, restaurants, etc.—No person owning or running a hotel, restaurant, wedding hall, community centre or club being the site of marriage ceremony or any caterer shall serve or allow any one to serve any meals or edibles to the persons participating in the marriage ceremony other than hot and cold soft drinks.

6. Committees for prohibition of Wasteful Expenses on Marriages.—The Provincial Government shall, by notification in the official Gazette, constitute an Ehtesab Committee for each sub-division, tehsil or taluka which shall, in accordance with the rules made under this Act, be responsible for implementation of the provisions of this Act.

7. Offences.—Whoever contravenes the provisions of section 3, section 4 or section 5 shall be guilty of an offence punishable with fine which shall be not less than one hundred thousand rupees and not more than three hundred thousand rupees.

8. Cognizance of offences.—No Court shall take cognizance of an offence under this Act except on a complaint in writing by the Committee.

9. Rules.—The Provincial Government may, by notification in the official Gazette, make rules carrying out the purpose of this Act.



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